

JAMES MARTIN v. STATE OF KERALA

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(BEFORE DORAISWAMY RAJU AND ARIJIT PASAYAT, JJ.)

a JAMES MARTIN .. Appellant,
Versus
STATE OF KERALA .. Respondent.

Criminal Appeal No. 887 of 1997[†] with SLPs (Crl.) Nos. 47-49 of 1998,
decided on December 16, 2003

- b* **A. Penal Code, 1860 — Ss. 97 and 99 — Right of private defence — Whether was available to the accused — Determination of — Relevant considerations — Held, said question to be decided on the facts and circumstances of each case — No test in abstract can be laid down in this regard — Injuries received by accused, imminence of threat to his safety, injuries caused by accused and circumstances whether accused had time to have recourse to public authorities, held, are relevant factors — In moments of excitement and disturbed mental equilibrium, parties cannot be expected to preserve composure and use exactly only so much force in retaliation commensurate with the danger apprehended — Due weightage to be given to what happens on the spur of the moment on the spot — Situations to be judged pragmatically keeping in view normal human reaction and conduct, where self-preservation is the paramount consideration — Microscopic and pedantic scrutiny, held, should be avoided**
- d*

Held :

- e* Whether in a particular set of circumstances, a person legitimately acted in the exercise of the right of private defence is a question of fact to be determined on the facts and circumstances of each case. No test in the abstract for determining such a question can be laid down. In determining this question of fact, the court must consider all the surrounding circumstances. A plea of right of private defence cannot be based on surmises and speculation. While considering whether the right of private defence is available to an accused, it is not relevant whether he may have a chance to inflict severe and mortal injury on the aggressor. The entire incident must be examined with care and viewed in its proper setting. The injuries received by the accused, the imminence of threat to his safety, the injuries caused by the accused and the circumstances whether the accused had time to have recourse to public authorities are all relevant factors to be considered, while determining whether right of private defence was available or not. (Paras 13, 14 and 16)
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Biran Singh v. State of Bihar, (1975) 4 SCC 161 : 1975 SCC (Cri) 454 : AIR 1975 SC 87; *Wassan Singh v. State of Punjab*, (1996) 1 SCC 458 : 1996 SCC (Cri) 119; *Sekar v. State*, (2002) 8 SCC 354 : 2003 SCC (Cri) 16, *relied on*

- g* The right of self-defence is a very valuable right, serving a social purpose and should not be construed narrowly. (Para 18)

Vidhya Singh v. State of M.P., (1971) 3 SCC 244 : 1971 SCC (Cri) 469 : AIR 1971 SC 1857, *relied on*

Situations have to be judged from the subjective point of view of the accused concerned in the surrounding excitement and confusion of the moment,

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- [†] From the Judgment and Order dated 21-7-1997 of the Kerala High Court in Crl. A. No. 4 of 1994

confronted with a situation of peril and not by any microscopic and pedantic scrutiny. In adjudging the question as to whether more force than was necessary was used in the prevailing circumstances on the spot, it would be inappropriate to adopt tests by detached objectivity which would be so natural in a courtroom, or that which would seem absolutely necessary to a perfectly cool bystander. The person facing a reasonable apprehension of threat to himself cannot be expected to modulate his defence step by step with any arithmetical exactitude of only that much which is required in the thinking of a man in ordinary times or under normal circumstances. A person who is apprehending death or bodily injury cannot weigh in golden scales on the spur of the moment and in the heat of circumstances, the number of injuries required to disarm the assailants who were armed with weapons. In moments of excitement and disturbed mental equilibrium it is often difficult to expect the parties to preserve composure and use exactly only so much force in retaliation commensurate with the danger apprehended to him. Where assault is imminent by use of force, it would be lawful to repel the force in self-defence and the right of private defence commences, as soon as the threat becomes so imminent. Such situations have to be pragmatically viewed and not with high-powered spectacles or microscopes to detect slight or even marginal overstepping. Due weightage has to be given to, and hypertechnical approach has to be avoided in considering what happens on the spur of the moment on the spot and keeping in view normal human reaction and conduct, where self-preservation is the paramount consideration. But, if the fact situation shows that in the guise of self-preservation, what really has been done is to assault the original aggressor, even after the cause of reasonable apprehension has disappeared, the plea of right of private defence can legitimately be negated. (Paras 18, 17 and 20)

Buta Singh v. State of Punjab, (1991) 2 SCC 612 : 1991 SCC (Cr) 494 : AIR 1991 SC 1316, *relied on*

B. Penal Code, 1860 — Ss. 97 and 99 — Right of private defence — Burden to establish the plea of — Held, is on the accused — Burden stands discharged by showing preponderance of probabilities in favour of his plea either by himself adducing positive evidence or by reference to circumstances transpiring from the prosecution evidence itself — Proof beyond reasonable doubt, held, not required — Court can consider such plea even if the accused has not taken it, if the same is available to be considered from the material on record — Evidence Act, 1872, Ss. 105 and 101

Held :

Under Section 105 of the Evidence Act, 1872, the burden of proof is on the accused, who sets up the plea of self-defence, and, in the absence of proof, it is not possible for the court to presume the truth of the plea of self-defence. It is for the accused to place necessary material on record either by himself adducing positive evidence or by eliciting necessary facts from the witnesses examined for the prosecution. An accused taking the plea of the right of private defence is not necessarily required to call evidence; he can establish his plea by reference to circumstances transpiring from the prosecution evidence itself. The question in such a case would be a question of assessing the true effect of the prosecution evidence, and not a question of the accused discharging any burden. Where the right of private defence is pleaded, the defence must be a reasonable and probable version satisfying the court that the harm caused by the accused was

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a necessary for either warding off the attack or for forestalling the further reasonable apprehension from the side of the accused. The burden of establishing the plea of self-defence is on the accused and the burden stands discharged by showing preponderance of probabilities in favour of that plea on the basis of the material on record. The accused need not prove the existence of the right of private defence beyond reasonable doubt. It is enough for him to show as in a civil case that the preponderance of probabilities is in favour of his plea.

(Para 13)

b *Munshi Ram v. Delhi Admn.*, AIR 1968 SC 702 : 1968 Cri LJ 806; *State of Gujarat v. Bai Fatima*, (1975) 2 SCC 7 : 1975 SCC (Cri) 384 : AIR 1975 SC 1478; *State of U.P. v. Mohd. Musheer Khan*, (1977) 3 SCC 562 : 1977 SCC (Cri) 565 : AIR 1977 SC 2226; *Mohinder Pal Jolly v. State of Punjab*, (1979) 3 SCC 30 : 1979 SCC (Cri) 635 : AIR 1979 SC 577; *Salim Zia v. State of U.P.*, (1979) 2 SCC 648 : 1979 SCC (Cri) 568 : AIR 1979 SC 391, *relied on*

c It is not necessary for the accused to plead in so many words that he acted in self-defence. If the circumstances show that the right of private defence was legitimately exercised, it is open to the court to consider such a plea. In a given case the court can consider it even if the accused has not taken it, if the same is available to be considered from the material on record.

(Para 13)

d **C. Penal Code, 1860 — S. 100 — Right of private defence extending to voluntary causing of death — Essential requisite for — Held, the accused must show that there were circumstances giving rise to reasonable grounds for apprehending that either death or grievous hurt would be caused to him**

(Para 14)

D. Penal Code, 1860 — S. 102 — Right of private defence of body — Commencement and continuance of

Held :

e The right commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence although the offence may not have been committed but not until there is that reasonable apprehension. The right lasts so long as the reasonable apprehension of the danger to the body continues.

(Para 15)

Jai Dev v. State of Punjab, AIR 1963 SC 612 : (1963) 1 Cri LJ 495, *relied on*

f **E. Penal Code, 1860 — Ss. 97 and 99 — Injuries on accused — Presumption as to exercise of right of private defence — If can necessarily be raised in such case**

Held :

g The number of injuries is not always a safe criterion for determining who the aggressor was. It cannot be stated as a universal rule that whenever the injuries are on the body of the accused persons, a presumption must necessarily be raised that the accused persons had caused injuries in exercise of the right of private defence. The defence has to further establish that the injuries so caused on the accused probabilise the version of the right of private defence.

(Para 14)

h **F. Criminal Trial — Failure to explain injuries on accused — When not fatal — Held, would not affect the prosecution case if the injuries sustained by the accused are minor and superficial or where the evidence is so clear and cogent, so independent and disinterested, so probable, consistent and creditworthy, that it far outweighs the effect of the omission on the part of the prosecution to explain the injuries**

(Para 14)

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Lakshmi Singh v. State of Bihar, (1976) 4 SCC 394 : 1976 SCC (Cri) 671 : AIR 1976 SC 2263, *relied on*

G. Penal Code, 1860 — Ss. 103, 100, 304 Pt. I, 326 and 324 — Right of private defence — Entitlement to — Accused-appellant (A-1) not closing his flour mill on the day of “Bharat bandh” which was organised by some political parties — Bandh activists unlawfully entering into the said mill and demanding to close down the same — Activists were armed with sharp-edged weapons and were in foul and violent mood — They threatening and assaulting PW 15 (who was operating the mill) — Firing by appellant on the instigation of his father A-2 (who was acquitted by High Court) resulting in death of two of the activists — Injuries sustained by other activists and certain innocent people — Properties of appellant set on fire — Prosecution version that destruction of said properties done by violent mob collected at the scene of occurrence after the firing, whereas defence version that it occurred prior to the firing — On facts, held, acts done by the accused were within the reasonable limits of exercise of his right of private defence — Conviction of appellant set aside

The incident in question took place at about 2.30 p.m. on 15-3-1988, the date on which a “Bharat bandh” was organised by some political parties. The accused persons (appellant A-1 and his father A-2 who was acquitted by the High Court) had a flour mill. On coming to know about the operation of the said mill by the accused on 15-3-1988, the two deceased in the present case and PWs 1, 2 and 4 (all *bandh* activists) got into the said mill and made demands to PW 15 (the employee of A-2 who was operating the mill) to close down the mill. An altercation took place between them and on hearing the commotion the accused, A-1 and A-2 who were inside their residential building, situate to the west of that mill, rushed to the place and directed the *bandh* activists to go out of the mill. As the said activists persisted in their demands for closing the mill, A-2 directed A-1 to take out the gun and shoot down the *bandh* activists. A-1 on the instigation of A-2 fired at the *bandh* activists by using an SBL gun. The first shot hit one of the activists (B) and he fell down. A-1 fired again with the gun indiscriminately causing injuries to all of them. As a result of the said firing, apart from the said activists, certain other innocent people were also injured. Two of the activists (B and M) succumbed to their injuries.

As per the prosecution, the properties of the accused were set on fire by the violent mob collected at the place of occurrence because the mob got infuriated by the heinous act of the accused in firing at the *bandh* activists and other innocent people. On the other hand, the accused took the stand that the firing occurred after their properties were set on fire by the angry mob of *bandh* activists when the accused failed to meet their unlawful demand to close down the flour mill.

The appellant (A-1) was found guilty of offences punishable under Sections 304 Part I, 326 and 324 IPC. A-2 was also convicted in respect of the said offences invoking Section 34 IPC.

The trial court concluded that the *bandh* activists had scaled the walls. Their entry into the premises of the accused was not lawful. It was also held that they were prepared and in fact used muscle power to achieve their ends in making the *bandh* a success. It was categorically held that the *bandh* activists on getting into the mill threatened, intimidated and assaulted PW 15 so as to compel him to close down the mill. It was noticed by the trial court that the activists were in a

foul and violent mood. Finally, it was concluded that the right of private defence was exceeded in its exercise.

- a The view of the trial court was endorsed by the High Court by the impugned judgment so far as the present appellant is concerned. But benefit of doubt was given to A-2.

Allowing the appeal and setting aside the conviction and sentence, the Supreme Court

Held :

- b The facts as noted by the courts below clearly show that the threat to life and property of the accused was not only imminent but did not cease, and it continued unabated. Not only there were acts of vandalism, but also destruction of property. The High Court noticed that explosive substances were used to destroy the properties of the accused, but did not specifically answer the question as to whether the destruction was prior or subsequent to the shooting by the accused. The High Court did not find the prosecution evidence sufficient to decide the question. In such an event the evidence of PW 15 who was also a victim assumes importance. (Para 21)

- d The trial court found that an unruly situation prevailed in the compound of the accused as a result of the violence perpetrated by the *bandh* activists who got into the place by scaling over the locked gate and that their entry was unlawful too, besides intimidating and assaulting PW 15 and making him flee without shutting down the machines. Even the High Court candidly found that tense situation was caused by the deceased and his friends, that PW 15 suffered violence and obviously there was the threat of more violence to the person and properties, that the events taking place generated a sort of frenzy and excitement rendering the situation explosive and beyond compromise. Despite all these to expect the accused to remain calm or to observe greater restraint in the teeth of the further facts found that the accused had only PW 15 who was already manhandled though they were outnumbered by their opponents (the *bandh* activists) and whose attitude was anything but peaceful — would be not only too much to be desired but being unreasonably harsh and uncharitable, merely carried away only by considerations of sympathy for the lives lost, on taking a final account of what happened ultimately after everything was over. In the circumstances, the inevitable conclusion is that the acts done by the accused were in the reasonable limits of exercise of his right of private defence. (Para 21)

- e **H. Constitution of India — Arts. 19(1)(b), (a) and (c) — Strike or *hartal* or *bandh* — Inconvenience to any person or threat to, or destruction of, life and property of citizens and public, held, cannot be caused in the guise of — Question whether *bandh* or *hartal* or strike has any legal sanctity is of little consequence in such matters — Need to control such acts with an iron hand, emphasised** (Para 24)

W-M/TZ/29438/CR

Advocates who appeared in this case :

Sushil Kumar, Senior Advocate (M.T. George and Adolf Mathew, Advocates, with him), for the Appellant;

Ramesh Babu, M.R., Advocate, for the Respondent.

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1. (2002) 8 SCC 354 : 2003 SCC (Cri) 16, *Sekar v. State* 214d-e
2. (1996) 1 SCC 458 : 1996 SCC (Cri) 119, *Wassan Singh v. State of Punjab* 214d-e **a**
3. (1991) 2 SCC 612 : 1991 SCC (Cri) 494 : AIR 1991 SC 1316, *Buta Singh v. State of Punjab* 214d-e
4. (1979) 3 SCC 30 : 1979 SCC (Cri) 635 : AIR 1979 SC 577, *Mohinder Pal Jolly v. State of Punjab* 212g-h
5. (1979) 2 SCC 648 : 1979 SCC (Cri) 568 : AIR 1979 SC 391, *Salim Zia v. State of U.P.* 213a
6. (1977) 3 SCC 562 : 1977 SCC (Cri) 565 : AIR 1977 SC 2226, *State of U.P. v. Mohd. Musheer Khan* 212g **b**
7. (1976) 4 SCC 394 : 1976 SCC (Cri) 671 : AIR 1976 SC 2263, *Lakshmi Singh v. State of Bihar* 213e-f
8. (1975) 4 SCC 161 : 1975 SCC (Cri) 454 : AIR 1975 SC 87, *Biran Singh v. State of Bihar* 214d
9. (1975) 2 SCC 7 : 1975 SCC (Cri) 384 : AIR 1975 SC 1478, *State of Gujarat v. Bai Fatima* 212g **c**
10. (1971) 3 SCC 244 : 1971 SCC (Cri) 469 : AIR 1971 SC 1857, *Vidhya Singh v. State of M.P.* 215a-b
11. AIR 1968 SC 702 : 1968 Cri LJ 806, *Munshi Ram v. Delhi Admn.* 212g
12. AIR 1963 SC 612 : (1963) 1 Cri LJ 495, *Jai Dev v. State of Punjab* 214c

The Judgment of the Court was delivered by

ARIJIT PASAYAT, J.— Self-preservation is the prime instinct of every human being. The right of private defence is a recognized right in the criminal law. Therefore, Section 96 of the Indian Penal Code, 1860 (in short “IPC”) provides that nothing is an offence which is done in the exercise of the right of private defence. The question is, as happens in many cases, where exercise of such rights is claimed, whether the “*Lakshman rekha*”, applicable to its exercise has been exceeded. Section 99 IPC delineates the extent to which the right may be exercised. **e**

2. The claim was made by the accused in the following background:

Appellant James Martin faced trial along with his father Xavier for alleged commission of offences punishable under Sections 302, 307, 326 read with Section 34 and Section 324 read with Section 114 IPC and Section 25-B(1) of the Arms Act, 1959 (in short “the Act”) and Sections 27 and 30 thereof. Learned Sessions Judge, N. Paravur, found the present appellant (A-1) guilty of offences punishable under Sections 304 Part I, 326 and 324 IPC, while the other accused was found guilty of the offences punishable under Section 304 Part I read with Section 34, Section 326 read with Sections 34, 324 IPC. Both the accused persons were sentenced to undergo imprisonment for 7 years and for the second offence, 2 years’ RI and fine of Rs 20,000 with default stipulation of one-year sentence. It was directed that in case fine was realized it was to be paid to PW 3. Each of the accused was also sentenced to undergo RI for 1 year for the offence punishable under Section 324 IPC and to pay a fine of Rs 5000 with default stipulation of 6 months’ sentence. The fine, if any, on realisation, was directed to be paid to **h**

PW 7 and PW 8. The fine was directed to be paid to PW 8. The sentences were directed to run concurrently.

a 3. A-2 also filed a complaint against twenty-four persons, which was tried as SC No. 74 of 1991. In the said case some of the PWs and their supporters were the accused. The State had launched prosecution against twelve of the said twenty-four persons. The same was tried as SC No. 57 of 1990.

b 4. Several appeals and revisions were filed by the appellants, the prosecution witnesses and the State. Appeal filed by the accused persons was numbered as Criminal Appeal No. 4 of 1994. As complaint was lodged by the accused alleging various offences by the prosecution witnesses, a separate case (SC No. 74 of 1991) was registered in which there was an acquittal. Against such acquittal also appeal was filed by A-2 which was numbered as Criminal Appeal No. 471 of 1994. Criminal Appeal No. 784 of 1994 was
c filed by the State questioning acquittal in SC No. 57 of 1990. Father of one of the victims filed a criminal revision CrI. RP No. 820 of 1994. The propriety of conviction under Section 304 Part I instead of Section 302 IPC was questioned by the State in CrI. Appeal No. 312 of 1994. By a common judgment all matters were disposed of.

d 5. The matrix of the litigation related to a *Bharat bandh* on 15-3-1988 sponsored by some political parties. Prosecution version as unfolded during trial is as follows:

e Most of the shops and offices were closed and vehicles were off the road. There were isolated instances of defiance to the *bandh* call and some incidents had taken place that, however, did not escalate to uncontrolled dimensions. Cheranelloor, where the incidents concerned took place, is a politically sensitive suburb of Kochi where accused-appellant James and his father Xavier had their residence, besides a bread factory and a flour mill in the same compound. It was not anybody's case that they belonged to any political party or had credentials, which were unwholesome. By normal reckoning, their business activities flourished well. They owned a tempo van and other vehicles which were parked inside the compound itself. It was,
f however, said that their success in business was a matter of envy for Thomas Francis, their neighbour, particularly who filed complaints to the local authorities against the conduct of the mill and the factory and also filed a writ petition to get them closed down, but without success. He was one of the accused in SC No. 74 of 1991 and according to the accused-appellant James was the kingpin and that the incident was wrought by him out of hatred and
g deep animosity towards James and Xavier.

h 6. The incident involved in this case took place at about 2.30 p.m. on 15-3-1988 when five young men, the two deceased in this case, namely, Mohan and Basheer (hereinafter referred to as "deceased" by their respective names) and PW 1, PW 2 and PW 4, who were activists of the *bandh*, as followers of the political parties which organized that *bandh* on that day, got into the flour mill of A-2 through the unlocked gate leading access to that

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mill situate in a property comprising the residential building, a bread factory and other structures belonging to that accused. This group of five men on passing beside the mill of A-2 while they were perambulating the streets of Cheranelloor to have a first-hand information as to the observance of the *bandh* on coming to know of the operation of the flour mill by A-2 proceeded to that place and made demands to PW 15, the employee of A-2 who was operating the mill to close down. An altercation took place between them and on hearing the commotion the accused, A-1 and A-2 who were inside their residential building, situate to the west of that mill, rushed to the place and directed the *bandh* activists to go out of the mill. As the activists of the *bandh* persisted in their demands for closing the mill, according to the prosecution, A-2 got out of the mill and on the instruction given by A-2, A-1 locked the gate of the compound from inside. Then both of them rushed back to the house with A-2 directing A-1 to take out the gun and shoot down the *bandh* activists by declaring that all of them should be finished off. On getting into the house and after closing the outer door of that building, both the accused rushed to the southern room of that building which faced the gate with a window opening to that side. The first accused on the instigation of the second accused, his father, and having that accused beside him, fired at the *bandh* activists, who by that time had approached near the locked gate, by using an SBL gun through the window. The first shot fired from the gun hit one of the *bandh* activists, who had got into the compound, namely, Basheer, and he fell down beside the gate. The other four *bandh* activists on requesting the first accused not to open fire rushed towards Basheer and, according to the prosecution, the first accused fired again with the gun indiscriminately causing injuries to all of them. Even when the first shot was fired from the gun, passers-by on the road situate in front of that property also sustained injuries. When the firing continued as stated above, some of the residents of the area who were standing beside the road also received gunshot injuries. On hearing the gunshots people of the locality rushed to the scene of occurrence and some of them by scaling over the locked gate broke open the lock and removed the injured to the road, from where they were rushed to the hospital in a tempo van along with the other injured who had also sustained gunshot injuries while they were standing beside the road. One among the injured, namely, Mohan breathed his last while he was transported in the tempo to the hospital and another, namely, Basheer, succumbed to his injuries after being admitted at City Hospital, Ernakulam. All the other injured were admitted in that hospital to provide them treatment for the injuries sustained. After the removal of the injured to the hospital in the tempo as aforesaid, a violent mob which collected at the scene of occurrence set fire to the residential building, flour mill, bread factory, household articles, cycles, a tempo and scooter, parked in front of the residential building of the accused, infuriated by the heinous act of the accused in firing at the *bandh* activists and other innocent people as aforesaid. Soon after the firing both the accused and PW 15 escaped from the scene of occurrence and took shelter in a nearby house.

7. The information as to the occurrence of a skirmish and altercation between *bandh* activists and the accused and of an incident involving firing at Cheranelloor was received by the police at Kalamassery Police Station from the Fire Station at Gandhi Nagar, Ernakulam, which was informed of such an incident over phone by a resident living close to the place of occurrence.

8. The accused on the other hand, took the stand that the firing resulting in the death of two *bandh* activists and sustaining of grievous injuries to several others occurred when their house and other buildings, situated in a common compound bounded with well-protected boundary walls, and movable properties kept therein were set on fire by an angry mob of *bandh* activists when the accused failed to heed their unlawful demand to close down the flour mill which was operating on that day.

9. The trial court discarded the prosecution version that the deceased and PWs who had sustained injuries had gone through the gate as claimed. On analysing the evidence it was concluded that they had scaled the walls. Their entry into the premises of the accused was not lawful. It was also held that PW 15 was roughed up by the *bandh* activists, making him run away. A significant conclusion was arrived at that they were prepared and in fact used muscle power to achieve their ends in making the *bandh* a success. It was categorically held that the *bandh* activists on getting into the mill threatened, intimidated and assaulted PW 15 so as to compel him to close down the mill. He sustained injuries, and *bandh* activists indulged in violence before the firing took place at the place of occurrence. The accused asked PW 1, PW 2 and PW 4 to leave the place. It was noticed by the trial court that the activists were in a foul and violent mood and had beaten up one Jossy, and this indicated their aggressive mood. They were armed with sharp-edged weapons. Finally, it was concluded that the right of private defence was exceeded in its exercise.

10. On consideration of the evidence on record as noted above, the conviction was made by the trial court and sentence was imposed. The trial court came to hold that though the accused persons claimed alleged exercise of right of private defence, the same was exceeded. The view was endorsed by the High Court by the impugned judgment so far as the present appellant is concerned. But benefit of doubt was given to A-2, father of the present appellant.

11. Mr Sushil Kumar, learned Senior Counsel for the appellant submitted that the factual scenario clearly shows as to how the appellant was faced with the violent acts of the prosecution witnesses. Admittedly, all of them had forcibly entered into the premises of the appellant. PW 15, one of the employees was inflicted severe injuries. In this background, the accused acted in exercise of right of private defence and there was no question of exceeding such right, as held by the trial court and the High Court.

12. In response, learned counsel for the State submitted that after analysing the factual position the trial court and the High Court have rightly held that the accused exceeded the right of private defence and when two

persons have lost their lives, it cannot be said that the act done by the accused was within the permissible limits. He also pressed for accepting prayer in the connected SLPs relating to acquittal of A-2 and conviction of the accused-appellant under Section 304 Part I. a

13. The only question which needs to be considered is the alleged exercise of right of private defence. Section 96 IPC provides that nothing is an offence which is done in the exercise of the right of private defence. The section does not define the expression “right of private defence”. It merely indicates that nothing is an offence which is done in the exercise of such right. Whether in a particular set of circumstances, a person legitimately acted in the exercise of the right of private defence is a question of fact to be determined on the facts and circumstances of each case. No test in the abstract for determining such a question can be laid down. In determining this question of fact, the court must consider all the surrounding circumstances. It is not necessary for the accused to plead in so many words that he acted in self-defence. If the circumstances show that the right of private defence was legitimately exercised, it is open to the court to consider such a plea. In a given case the court can consider it even if the accused has not taken it, if the same is available to be considered from the material on record. Under Section 105 of the Indian Evidence Act, 1872 (in short “the Evidence Act”), the burden of proof is on the accused, who sets up the plea of self-defence, and, in the absence of proof, it is not possible for the court to presume the truth of the plea of self-defence. The court shall presume the absence of such circumstances. It is for the accused to place necessary material on record either by himself adducing positive evidence or by eliciting necessary facts from the witnesses examined for the prosecution. An accused taking the plea of the right of private defence is not necessarily required to call evidence; he can establish his plea by reference to circumstances transpiring from the prosecution evidence itself. The question in such a case would be a question of assessing the true effect of the prosecution evidence, and not a question of the accused discharging any burden. Where the right of private defence is pleaded, the defence must be a reasonable and probable version satisfying the court that the harm caused by the accused was necessary for either warding off the attack or for forestalling the further reasonable apprehension from the side of the accused. The burden of establishing the plea of self-defence is on the accused and the burden stands discharged by showing preponderance of probabilities in favour of that plea on the basis of the material on record. (See *Munshi Ram v. Delhi Admn.*¹, *State of Gujarat v. Bai Fatima*², *State of U.P. v. Mohd. Musheer Khan*³ and *Mohinder Pal Jolly v. State of Punjab*⁴.) Sections 100 to 101 define the extent of the right of private defence of body. If a person has a right of private defence of body under Section 97, that right extends under b
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1 AIR 1968 SC 702 : 1968 Cri LJ 806

2 (1975) 2 SCC 7 : 1975 SCC (Cri) 384 : AIR 1975 SC 1478

3 (1977) 3 SCC 562 : 1977 SCC (Cri) 565 : AIR 1977 SC 2226

4 (1979) 3 SCC 30 : 1979 SCC (Cri) 635 : AIR 1979 SC 577 h

Section 100 to causing death if there is a reasonable apprehension that death or grievous hurt would be the consequence of the assault. The oft-quoted observation of this Court in *Salim Zia v. State of U.P.*⁵ runs as follows: (SCC p. 654, para 9)

- a “It is true that the burden on an accused person to establish the plea of self-defence is not as onerous as the one which lies on the prosecution and that while the prosecution is required to prove its case beyond reasonable doubt, the accused need not establish the plea to the hilt and may discharge his onus by establishing a mere preponderance of probabilities either by laying basis for that plea in the cross-examination of prosecution witnesses or by adducing defence evidence.”
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The accused need not prove the existence of the right of private defence beyond reasonable doubt. It is enough for him to show as in a civil case that the preponderance of probabilities is in favour of his plea.

- c 14. The number of injuries is not always a safe criterion for determining who the aggressor was. It cannot be stated as a universal rule that whenever the injuries are on the body of the accused persons, a presumption must necessarily be raised that the accused persons had caused injuries in exercise of the right of private defence. The defence has to further establish that the injuries so caused on the accused probabilise the version of the right of private defence. Non-explanation of the injuries sustained by the accused at about the time of occurrence or in the course of altercation is a very important circumstance. But mere non-explanation of the injuries by the prosecution may not affect the prosecution case in all cases. This principle applies to cases where the injuries sustained by the accused are minor and superficial or where the evidence is so clear and cogent, so independent and disinterested, so probable, consistent and creditworthy, that it far outweighs the effect of the omission on the part of the prosecution to explain the injuries. (See *Lakshmi Singh v. State of Bihar*⁶.) A plea of right of private defence cannot be based on surmises and speculation. While considering whether the right of private defence is available to an accused, it is not relevant whether he may have a chance to inflict severe and mortal injury on the aggressor. In order to find whether the right of private defence is available to an accused, the entire incident must be examined with care and viewed in its proper setting. Section 97 deals with the subject-matter of right of private defence. The plea of right comprises the body or property (i) of the person exercising the right; or (ii) of any other person; and the right may be exercised in the case of any offence against the body, and in the case of offences of theft, robbery, mischief or criminal trespass, and attempts at such offences in relation to property. Section 99 lays down the limits of the right of private defence. Sections 96 and 98 give a right of private defence against certain offences and acts. The right given under Sections 96 to 98 and 100 to 106 is controlled by Section 99. To claim a right of private defence extending
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h ⁵ (1979) 2 SCC 648 : 1979 SCC (Cri) 568 : AIR 1979 SC 391

⁶ (1976) 4 SCC 394 : 1976 SCC (Cri) 671 : AIR 1976 SC 2263

to voluntary causing of death, the accused must show that there were circumstances giving rise to reasonable grounds for apprehending that either death or grievous hurt would be caused to him. The burden is on the accused to show that he had a right of private defence which extended to causing of death. Sections 100 and 101 IPC define the limit and extent of right of private defence.

15. Sections 102 and 105 IPC deal with commencement and continuance of the right of private defence of body and property respectively. The right commences, as soon as a reasonable apprehension of danger to the body arises from an attempt, or threat to commit the offence, although the offence may not have been committed but not until there is that reasonable apprehension. The right lasts so long as the reasonable apprehension of the danger to the body continues. In *Jai Dev v. State of Punjab*⁷ it was observed that as soon as the cause for reasonable apprehension disappears and the threat has either been destroyed or has been put to route, there can be no occasion to exercise the right of private defence.

16. In order to find whether right of private defence is available or not, the injuries received by the accused, the imminence of threat to his safety, the injuries caused by the accused and the circumstances whether the accused had time to have recourse to public authorities are all relevant factors to be considered. Similar view was expressed by this Court in *Biran Singh v. State of Bihar*⁸. (See *Wassan Singh v. State of Punjab*⁹ and *Sekar v. State*¹⁰.)

17. As noted in *Buta Singh v. State of Punjab*¹¹, a person who is apprehending death or bodily injury cannot weigh in golden scales on the spur of the moment and in the heat of circumstances, the number of injuries required to disarm the assailants who were armed with weapons. In moments of excitement and disturbed mental equilibrium it is often difficult to expect the parties to preserve composure and use exactly only so much force in retaliation commensurate with the danger apprehended to him. Where assault is imminent by use of force, it would be lawful to repel the force in self-defence and the right of private defence commences, as soon as the threat becomes so imminent. Such situations have to be pragmatically viewed and not with high-powered spectacles or microscopes to detect slight or even marginal overstepping. Due weightage has to be given to, and hypertechnical approach has to be avoided in considering what happens on the spur of the moment on the spot and keeping in view normal human reaction and conduct, where self-preservation is the paramount consideration. But, if the fact situation shows that in the guise of self-preservation, what really has been done is to assault the original aggressor, even after the cause of reasonable apprehension has disappeared, the plea of right of private defence

⁷ AIR 1963 SC 612 : (1963) 1 Cri LJ 495

⁸ (1975) 4 SCC 161 : 1975 SCC (Cri) 454 : AIR 1975 SC 87

⁹ (1996) 1 SCC 458 : 1996 SCC (Cri) 119

¹⁰ (2002) 8 SCC 354 : 2003 SCC (Cri) 16

¹¹ (1991) 2 SCC 612 : 1991 SCC (Cri) 494 : AIR 1991 SC 1316

can legitimately be negated. The court dealing with the plea has to weigh the material to conclude whether the plea is acceptable. It is essentially, as noted above, a finding of fact.

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18. The right of self-defence is a very valuable right, serving a social purpose and should not be construed narrowly. (See *Vidhya Singh v. State of M.P.*¹²) Situations have to be judged from the subjective point of view of the accused concerned in the surrounding excitement and confusion of the moment, confronted with a situation of peril and not by any microscopic and pedantic scrutiny. In adjudging the question as to whether more force than was necessary was used in the prevailing circumstances on the spot, it would be inappropriate, as held by this Court, to adopt tests by detached objectivity which would be so natural in a courtroom, or that which would seem absolutely necessary to a perfectly cool bystander. The person facing a reasonable apprehension of threat to himself cannot be expected to modulate his defence step by step with any arithmetical exactitude of only that much which is required in the thinking of a man in ordinary times or under normal circumstances.

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19. In the illuminating words of Russell (*Russell on Crime*, 11th Edn., Vol. I at p. 49):

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“... a man is justified in resisting by force anyone who manifestly intends and endeavours by violence or surprise to commit a known felony against either his person, habitation or property. In these cases, he is not obliged to retreat, and may not merely resist the attack where he stands but may indeed pursue his adversary until the danger is ended and if in a conflict between them he happens to kill his attacker, such killing is justifiable.”

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20. The right of private defence is essentially a defensive right circumscribed by the governing statute i.e. IPC, available only when the circumstances clearly justify it. It should not be allowed to be pleaded or availed as a pretext for a vindictive, aggressive or retributive purpose of offence. It is a right of defence, not of retribution, expected to repel unlawful aggression and not as a retaliatory measure. While providing for exercise of the right, care has been taken in IPC not to provide and has not devised a mechanism whereby an attack may be a pretence for killing. A right to defend does not include a right to launch an offensive, particularly when the need to defend no longer survived.

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21. The background facts as noted by the trial court and the High Court clearly show that the threat to life and property of the accused was not only imminent but did not cease, and it continued unabated. Not only there were acts of vandalism, but also destruction of property. The High Court noticed that explosive substances were used to destroy the properties of the accused, but did not specifically answer the question as to whether destruction was prior or subsequent to the shooting by the accused. The High Court did not find the prosecution evidence sufficient to decide the question. In such an

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¹² (1971) 3 SCC 244 : 1971 SCC (Cri) 469 : AIR 1971 SC 1857

event the evidence of PW 15 who was also a victim assumes importance. The High Court without indicating any acceptable reason held on mere assumptions that his sympathy lies with the accused. The conclusion was unwarranted, because the testimony was acted upon by the courts below as a truthful version of the incident. The trial court found that an unruly situation prevailed in the compound of the accused as a result of the violence perpetrated by the bandh activists who got into the place by scaling over the locked gate and that their entry was unlawful too, besides intimidating and assaulting PW 15 and making him flee without shutting down the machines. The circumstances were also found to have necessitated a right of private defence. Even the High Court candidly found that tense situation was caused by the deceased and his friends, that PW 15 suffered violence and obviously there was the threat of more violence to the person and properties, that the events taking place generated a sort of frenzy and excitement rendering the situation explosive and beyond compromise. Despite all these to expect the accused to remain calm or to observe greater restraint in the teeth of the further facts found that the accused had only PW 15 who was already manhandled though they were outnumbered by their opponents (the bandh activists) and whose attitude was anything but peaceful — would be not only too much to be desired but being unreasonably harsh and uncharitable, merely carried away only by considerations of sympathy for the lives lost, on taking a final account of what happened ultimately after everything was over. In the circumstances, the inevitable conclusion is that the acts done by the accused were in the reasonable limits of exercise of his right of private defence and he was entitled to the protection afforded in law under Section 96 IPC.

22. Accordingly, we set aside the conviction and sentence imposed. The appeal is allowed. The bail bonds shall stand discharged so far as the present accused is concerned.

23. In view of the order passed in Criminal Appeal No. 887 of 1997 and conclusions arrived at therein no further orders are necessary to be passed in SLPs (Criminal) Nos. 47-49 of 1998 filed by the State of Kerala.

24. Before we part with the case, it needs to be noted that in the name of hartal or bandh or strike no person has any right to cause inconvenience to any other person or to cause in any manner a threat or apprehension of risk to life, liberty and property of any citizen or destruction of life and property, and the least to any government or public property. It is high time that the authorities concerned take serious note of this requirement while dealing with those who destroy public property in the name of strike, hartal or bandh. Those who at times may have even genuine demands to make should not lose sight of the overall situation eluding control and reaching unmanageable bounds endangering life, liberty and property of citizens and public, enabling anti-social forces to gain control resulting in all-around destruction with counterproductive results at the expense of public order and public peace. No person has any right to destroy another's property in the guise of bandh or hartal or strike, irrespective of the proclaimed

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- reasonableness of the cause or the question whether there is or was any legal sanction for the same. The case at hand is one which led to the destruction of property and loss of lives, because of irresponsible and illegal acts of some in the name of *bandh* or *hartal* or strike. Unless those who organize can be confident of enforcing effective control over any possible turn of events, they should think twice to hazard themselves into such risk-prone ventures endangering public peace and public order. The question whether *bandh* or *hartal* or strike has any legal sanctity is of little consequence in such matters.
- a All the more so when the days are such where even law-enforcing authorities/those in power also precipitate to gain political advantage at the risk and cost of their opponents. Unless such acts are controlled with an iron hand, innocent citizens are bound to suffer and they shall be the victims of the high-handed acts of some fanatics with queer notions of democracy and freedom of speech or association. That provides for no licence to take law into their own hands. Any soft or lenient approach for such offenders would be an affront to rule of law and challenge to public order and peace.

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(BEFORE V.N. KHARE, C.J. AND S.B. SINHA, J.)

d MERCYKUTTY AMMA Appellant;

Versus

KADAVOOR SIVADASAN AND ANOTHER Respondents.

Civil Appeals No. 4 of 2003[†] with No. 8648 of 2003[‡],
decided on November 6, 2003

- e A. Election — Corrupt practices — By “agent” or “any other person” — In any case consent of the candidate must be pleaded and proved by election petitioner in order to connect the candidate with the alleged corrupt practice — Allegation of publication of pamphlet by one *M*, with the intent of promoting feelings of enmity and hatred on grounds of caste, community, etc. — *M* neither shown to be agent of the elected candidate nor the pamphlet shown to have been published with his knowledge and consent —
- f Held on facts, allegation of corrupt practice not made out — Representation of the People Act, 1951, S. 123(4)
- B. Election — Election petition — Allegation of corrupt practice — Must be proved beyond reasonable doubt as in criminal trial — Representation of the People Act, 1951, S. 123
- g C. Election — Election trial — Corrupt practice — Naming of other persons involved — Opportunity before — Before recording name of a person who is not a party but proved at the trial to have been guilty of corrupt practice same opportunity should be given to him as is given to a party to the petition — Representation of the People Act, 1951, Ss. 99(1) proviso, 82 and 8-A

[†] From the Judgment and Order dated 29-10-2002 of the Kerala High Court in EP No. 7 of 2001

[‡] Arising out of SLP (C) No. 15350 of 2003